Protecting and Promoting the Human Rights of Men and Boys

Guidelines for Te Kāhui Tika Tangata Human Rights Commission

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Chapter 1

Introduction

This report will help the Human Rights Commission achieve its goals and perform its functions. It refers to a wide range of guidance documents for human rights organisations, including National Human Rights Institutions (see Bibliography for the complete list of documents).

The Commission wants to be an exemplar for human rights. This report will support the Commission in being exemplary for the human rights of men and boys.

This report will help the Commission fulfil its functions under Section 5 of the Human Rights Act 1993. This includes monitoring compliance with international human rights instruments[1], producing a National Plan of Action[2], and advising the Government[3]. Additionally, this report will help the Commission adhere to other legislation such as the Public Service Act 2020.

The Commission is a human rights *duty-bearer*. This report will help the Commission be accountable to men and boys as *rights-holders*. For example, it will help identify discrimination against men and boys in the Commission's policy and processes.

NHRIs like the Commission must adhere to the *Paris Principles*. This report supports the Commission in applying the principle of pluralism by including men and boys in its work.

The Government has obligations to respect, protect, and fulfil human rights. The Commission provides functions that allow the Government to meet its obligations. For example, by responding to reports of discrimination. If the Commission is not acting properly, this could result in a breach of international human rights treaties. This report helps the Commission perform these functions with respect to men and boys.

[1] Human rights Act 1993 – Section 5.2.kc
[2] Human rights Act 1993 – Section 5.2.m
[3] Human rights Act 1993 – Section 5.2.k

Protecting and promoting the rights of men and boys means applying human rights norms, principles, and standards. This is often called a *human-rights-based approach*.

This report explicitly states how human rights norms, principles, and standards apply to men and boys. This is needed because "sometimes even human rights practitioners find it difficult to link these concepts with implementation practices"[42]. For example, *National Human Rights Institutions Best Practice* says "NHRIs should assume special responsibility in responding to human rights violations suffered on account of sex or gender."[73] This report explains the Commission's responsibility for men and boys.

1.1 Language used in this report

Sex and gender are not the same thing. However, this report uses sex and gender interchangeably because most of the issues raised in this report apply to both sex and gender.

Various definitions of the term 'man' exist. This report uses the term 'man' to include most definitions of 'man' for easier reading. Similarly, in most cases, the term 'man / men' includes 'boy / boys'.

The term "men's rights" refers to:

- Human rights issues that affect men *because they are men*;
- Human rights issues that predominately affect men or boys;
- Human rights issues that affect men and boys in a unique way.

"Men's rights" can also refer to men's right to equality and to be free from discrimination.

In most cases, *emphasis is added* in quotations.

1.2 Selected Recommendations

These recommendations do not replace the recommendations and guidance included in the body of this report.

1. Assign a staff member/commissioner the responsibility of ensuring men's rights are fully included in the Commission's work;
2. Explicitly include men in Commission policy by having policy to ensure:
   (a) men's issues are monitored;
   (b) reports, submissions, advice etc. include men and boys; and
   (c) the National Plan of Action includes men's rights.
3. Form relationships with men's experts and advocates:
   (a) Create and maintain a directory of men's experts, advocates, and service providers; and
   (b) Regularly engage men's advocates and experts.
4. Build capacity to address men's rights issues:
   (a) Train staff on men's rights issues;
   (b) Maintain institutional knowledge on men's rights;
      - Conduct a baseline review of men's rights;
      - Maintain an accessible database or library of relevant information on men's rights issues.
5. Ensure communications are sensitive to men and men's right's issues;

Chapter 2

Human rights principles

The Commission wants to be an example of human rights. This means adhering to human rights principles such as universality, non-discrimination, and equality.

2.1 Universality

Human rights apply to everyone. That is, "all people, everywhere, are entitled to the same fundamental rights and freedoms".[19] *A Manual on National Human Rights Institutions* explains:

> The core international human rights treaties, including the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights, also affirm that the rights they contain apply to all persons, without distinction of any kind, and expressly guarantee the right of all people to the equal enjoyment of those rights, regardless of sex.[48]

2.1.1 Gender stereotypes

Gender stereotypes are generalised preconceptions about men and/or women. They can undermine the objective assessment of human rights. The Commission should avoid using gender stereotypes in its work.

Stereotypical thinking can lead to seeing something as normal or natural, or 'just the way things are'. *Gender Stereotyping as a Human Rights Violation* explains how relying on gender stereotypes can affect people's human rights:

> The harm is caused by the application of a stereotypical belief to an individual (e.g., through a state enforcing a gender stereotype into a law) in such a way as to negatively affect the recognition, exercise, or enjoyment of their rights and freedoms.[23]

Commission staff should be aware of their biases and how it affects their work with men and boys. *Integrating a Gender Perspective into Human Rights Investigations* explains that biases and stereotypes can lead us to overlook important information:

> Be aware of the team members' own biases, prejudices and stereotypes that may lead to their overlooking important gender-sensitive information, for instance by not asking the relevant questions, affecting information-gathering and documentation.[43]

2.2 Non-discrimination

The principle of non-discrimination follows from the principle of universality. "Non-discrimination means that no one should be subjected to any distinction, exclusion, restriction, or preference because of a personal characteristic like race, colour, sex, language, religion, national or social origin."[19]

The Commission's work should not discriminate based on gender or sex. The Commission may discriminate if its actions or policy impairs the recognition or enjoyment of men's rights. For example, the recognition of men's rights is impaired if they are not included in monitoring an reporting. The Commission must explicitly include men's rights in its work to avoid discrimination against men.

"Discrimination can be direct or indirect. 'Direct discrimination' occurs when an individual is treated less favourably than someone else in a similar situation, for a reason related to a prohibited ground... 'Indirect discrimination' describes the situation where an apparently neutral practice or condition has a disproportionate, negative impact on one of the groups against whom it is unlawful to discriminate, and the practice or condition cannot be justified objectively."[18]

The Commission should ensure that its apparently gender-neutral policies and practices do not negatively impact men and boys.

The Commission's *Governance and Responsibilities Manual* describes non-discrimination as "ensuring the equitable enjoyment of rights and obligations for all, including moving from a focus on 'need' to a focus on the fulfilment of 'rights'."[19] The Commission should consider how to fulfil the rights of men and boys.

2.3 Gender equality

Gender equality is a consequence of the principles of universality and non-discrimination. Gender equality "was made part of international human rights law by the Universal Declaration of Human Rights when it was adopted by the UN General Assembly on 10 December 1948".[38]

Gender equality means equal rights, responsibilities, and opportunities between women and men. UN Women explains that "gender equality implies that the interests, needs and priorities of both women and men are taken into consideration".[78] Similarly, the Asia Pacific Forum says gender equality "means the aspirations and needs of all genders are considered, valued and favoured equally".[50] Therefore, the Commission must consider the needs and interests of both women *and men*, without favouring either.

Substantive/de facto equality

International human rights law identifies two types of equality. One, formal or *de jure* equality, which is equality under the law and policy. Two, substantive or *de facto* equality, which is equality of outcomes or results.[9]

Formal equality is not always enough to ensure that everyone enjoys their human rights. For example, repealing a discriminatory law does not address the effects of the discrimination. Likewise, gender-neutral laws and policies may not have gender-neutral results. Gender stereotypes, biases, and culture or tradition can cause indirect discrimination even when laws and policies are gender neutral.

Men and boys have the same right to substantive equality as women and girls. If gender-neutral policies do not produce substantive equality for men and boys, different strategies will be necessary.

The Commission should not assume that its own gender neutral policies are sufficient to protect men's rights. *A Manual on National Human Rights Institutions* points out that relying on gender-neutral policies can lead to perpetuating injustices:

> A widespread belief in and commitment to the underlying objectivity and "gender neutrality" of core human rights prevented recognition of the fact that equal treatment of persons in unequal situations will invariably perpetuate, rather than eradicate, injustices.[48]

The *Committee on the Elimination of Discrimination against Women* expects NHRIs to base their work "on the principle of formal and substantive equality between women and men and non-discrimination"[25]

The principle of substantive equality requires the Commission to address the disadvantages faced by men and boys in their work. For example, the Commission is required to monitor CEDAW, which means regularly reviewing women's rights. The Commission does not regularly review men's rights. This creates a disadvantage for men that the Commission should address.

Chapter 3

Gender Mainstreaming

Gender mainstreaming is the practical application of the principle of gender equality. "It is a strategy for making women's as well as men's concerns and experiences an integral dimension of the design, implementation, monitoring and evaluation of policies and programmes... so that women and men benefit equally".[26]

In the *Amman Declaration*, NHRIs agreed to implement gender mainstreaming in their work:

> [NHRI's agree to] prioritize and mainstream... gender equality throughout all their strategic planning, processes, policies, programmes and activities with a view to establishing sustainable interventions to achieve gender equality. This would also include developing and implementing training for NHRI members and staff on gender equality and reviewing their internal structures with a view to achieving gender equality at all levels and in all aspects of their work... [52]

Similarly, the *Apia Statement* — which the Commission contributed to — recommends Pacific region NHRI's "commit to planning and implementing an internal gender mainstreaming strategy."[28]

Gender mainstreaming is an **active process**[49] that considers the effects of policies on both women and men before **decisions are made**.[40] The Commission should have a gender mainstreaming strategy that considers the impacts of policies and programmes on men. In short, the Commission asks two questions:

1. What do men need from the Commission?

2. How can the Commission provide what men need?

3.1 Gender analysis

Gender analysis is the first step in gender mainstreaming. Gender analysis "allows for the screening of a given policy proposal, in order to detect and assess its differential impact or effects on women and men, so that these imbalances can be redressed before the proposal is endorsed. An analysis from a gender perspective helps to see whether the needs of women and men are equally taken into account and served by this proposal."[47]

The Commission should complete a gender analysis early in the development process for new policies and programmes to identify if the policy will meet men's needs. Then the Commission can address any discrepancies found in the analysis.

The Commission should also analyse existing policies and programmes to see if they are meeting the needs of men and boys.

Including men in gender analysis

Historically, gender mainstreaming and gender analysis has focused on women. It is important for the Commission to ensure that men are effectively included in gender mainstreaming and gender analysis. In *Gender Mainstreaming for Gender Equality Results*, UN Women argues that men must be included in gender analysis:

> Gender analysis must focus on women and men, and girls and boys, and on the relations between and amongst them. When gender is applied as a synonym for women, and men are not included in analyses, the potential to identify gender relations... is seriously constrained.[79]

UN Women continues to explain some of the problems of excluding men in gender analysis[79]:

> **Ignoring men in gender analysis means gender relations are being neglected, and this is problematic for several reasons**:
>
> - The critical underlying structural and systemic causes of gender inequality, discrimination, and exclusion can be overlooked;
> - The gender-based inequality, discrimination, and exclusion faced by women can be viewed as just women's problems, reinforcing the focus on women only;
> - Men can be seen as the norm and women perceived as the ones who are expected to change or adapt;
> - **Any discrimination or exclusion faced by men and boys will be ignored**, even though gendered societal ex-

pectations of men and boys can create significant challenges and constraints and make unacceptable demands on individual men and boys; and

- Men are overlooked as an important constituency for promoting gender equality

3.1.1 Evaluating gender mainstreaming

The Commission needs to ensure that good intentions to include men in their work translate into actual positive outcomes for men. *Gender Mainstreaming – Conceptual Framework, Methodology and Presentation of Good Practices* cautions against assuming intentions will translate into practice:

> Introducing mainstreaming in the first stages is no guarantee that a gender perspective will effectively be taken into account when policies are implemented – analysis and action are two different things. There are big steps between detecting a gender issue, endorsing the principle of gender equality and implementing policies which take this issue into account.[47]

3.2 Leadership, Commitment & Planning

Including men and boys in the Commission's work will require leadership, commitment, and planning, because there is no external structure to support the work. The Commission's requirement to monitor CEDAW provides the structure to include women and girls.

Leadership: Leadership is required to ensure that men's rights are adequately included in the work of the Commission. The Commission's leadership is responsible for gender mainstreaming and therefore is responsible for including men's rights in the Commission's work. *NHRI Leadership: An Introductory Guide* states:

> The governance responsibilities of the top leaders include... ensuring that gender issues and gender perspectives are mainstreamed throughout the NHRI's work and in its policies and procedures inside the NHRI.[51]

Commitment: The Commission should demonstrate a commitment to including men and boys in its work. Commitment means that the leadership's intentions are translated into practice through explicit policies and adequate resources.

Planning: Including men and boys in the work of the Commission "requires a planned strategic and systematic approach".[49] "Comprehensive, integrated

strategies are required, not piecemeal approaches".[48] The Commission should have a formal system to include men and boys.

A formal system ensures:

- Decisions to include or exclude men and boys are not arbitrary;
- Continuity is maintained through staffing changes. Including men and boys is not reliant on specific staff member's personal interest (see Building the Commission's Capacity, on page 33, for more);
- The Commission can evaluate it effectiveness in its work for men and boys;
- Rights-holders can hold the Commission accountable (see Accountability, on page 75, for more);

3.3 Proactive, continuous, consistent

The Commission should be proactive and act continuously and consistently in the protection and promotion of men's human rights.

Proactive: The Commission should be proactive in protecting and promoting men's rights. "Integrating gender implies a proactive attitude of looking at and analysing how situations affect women, girls, men and boys differently".[57] "NHRIs must proactively reach out to vulnerable and disadvantaged persons"[73], including men and boys.

To be proactive, the commission should:

- Explicitly include men's rights in all stages, from planning to implementation to review.
- Reach out to men's advocates for collaboration, and expertise (see Collaboration and cooperation, on page 29, for more);
- Take responsibility for engaging with men's advocates. If men's advocates do not want to engage then that is something the Commission should overcome, not just accept;
- Identifying shortcomings in the Commission's protection and promotion of men's rights, and address them;
- Supporting civil society to advocate for men's rights (see Building public & civil society capacity, on page 35, for more).

Continuous process: Protecting and promoting men's rights requires long-term commitment. The inclusion of men is a continuous process and must be evaluated and adjusted over time. *National Human rights Institutions Best Practice* says:

> The roles of NHRIs will need to evolve as the nature of human rights challenges evolves. New problems will emerge and old challenges will require fresh approaches.[73]

Gender Mainstreaming - Conceptual Framework, Methodology and Presentation of Good Practices says:

> Gender equality must be constantly fought for, protected and promoted – like human rights, of which it is an integral part. Achieving gender equality is a continuous process that has to be constantly put into question, thought about and redefined.[47]

Consistent: The Commission should be consistent with including men in their work. "What strategies are in place to ensure that gender considerations are consistently integrated into the NHRI's work on an ongoing basis?"[29]

Chapter 4

Removing Barriers

The first step is to remove any barriers that prevent the Commission from including men and boys in its work. Ensuring that men and boys are included means that existing resources are used more effectively. Some progress can be made with little additional effort, but the Commission will need to allocate resources to address significant discrimination or barriers to the inclusion of men and boys.

4.1 Internal barriers

The Commission's systems and structures can create barriers to the protection and promotion of men's rights. A gender analysis will identify these barriers.

4.1.1 Systems should be gender-sensitive

The Commission's systems must be sensitive enough to identify gender-related human rights issues for men and boys. To ensure that the Commission is able to detect human rights issues for men and boys, the Commission should:

- Collect gender disaggregated data;
- Maintain a historical record on men's human rights;
- Track changes in men's human rights over time;
- Maintain staff's knowledge of men's human rights issues;

Even with the best intentions, without these measures the Commission cannot detect men's rights issues. See Gender sensitive monitoring, on page 38, for more.

To be effective in detecting human rights issues for men, the Commission should:

- Maintain co-operative relationships with organisations and advocates

who have in-depth knowledge of men's issues;

- Regularly assess the human right situation for men;
- Evaluate the effectiveness of their systems to detecting the human rights issues for men;
- Make improvements to their system if the evaluation finds flaws.

See Collaboration and cooperation, on page 29, and Accountability, on page 75, for more information.

4.1.2 Attitudes and beliefs of the leadership and staff

The attitudes and beliefs of the leadership and staff can create barriers to the protection and promotion of men's rights. Leadership and staff are, like everyone else, susceptible to biases and prejudices. If the Commission's leadership believes that men's rights are unimportant, this will be reflected in their actions and the Commission's policy. The Commission should ensure that the attitudes and beliefs of staff members do not create barriers to protecting and promoting men's rights.

The Commission's *Governance and Responsibilities Manual* says:

> Commissioners and kaimahi must recognise that personal biases can undermine the integrity of the Commission's work and lead to inconsistent application of human rights principles.[19]

Mainstreaming the Human Rights of Women and Girls into Our Everyday Work identifies organisational culture, including staff attitudes, as an important enabling factor for gender equality and, therefore, including men and boys:

> [An enabling factor is] organisational culture: the extent that the attitudes of staff, NHRI members and formal institutional systems, policies and structures support or marginalise gender equality.[49]

As a human rights duty-bearer, the Commission should consider the effects of their policy and actions on men. The Commission's stated beliefs about equality and universality are not necessarily reflected in its actions and policy. Commissioners and staff should consider whether their beliefs align with human rights principles and consider how these beliefs affect the protection and promotion of men's human rights.

It is possible that the leadership and staff do not know that their beliefs create barriers to the protection and promotion of men's rights. *Integrating a Gender Perspective into Human Rights Investigations* cautions that "gender-based discrimination might be so ingrained that even the investigators themselves fail to recognize human rights concerns".[43]

The Commission should "ensure that members and staff are equipped to deal

with issues that are sensitive, outside their experience, or clash with their personal beliefs"[32], including issues related to men and boys.

4.1.3 Knowledge and experience of leadership and staff

The protection and promotion of men's rights can be undermined by a lack of knowledge and/or experience of men's rights. The Commission's leadership and staff should have a minimum of basic knowledge about men's rights.

Leadership and staff should be able to answer basic questions, such as:

- What are the most significant human rights issues for men and boys?
- Who are the individuals and community groups that can provide expertise in men's rights?
- What progress is being made on men's rights?
- Who is the best person in government to approach about men's rights issues?
- Who is the Commission staff member responsible for men's rights?

See **Staff expertise:**, on page 33 for more information.

4.1.4 Accessibility

"An NHRI must be readily accessible to its clients – those individuals and groups whose rights it has been established to promote and protect".[73] The Commission should:

- Provide clear pathways for men and men's advocates to engage with them about men's human rights;
- Identify barriers for men and men's advocates in engaging with the Commission;
- Ensure men know *that* they can, and *how* they can, access the Commission;
- Ensure promotional material and public communication must make it clear that the Commission is interested in the protection and promotion of men's rights.

4.1.5 Use language carefully

"Over time, careful use of language can affect people's consciousness positively or negatively".[57] The use of language by the Commission can make it harder for men to recognise that they are victims, advocate for themselves and find help. The Commission should use language to empower men and men's advocates.

Use consistent definitions: The Commission should use terms as they are broadly defined and understood. When a term has multiple meanings, the Commission should not use the term to mean more than one thing.

For example, 'gender equality' means equal rights between women and men, but is often used to mean 'women's empowerment'. The United Nations reminds us that the "term gender is not interchangeable with women",[55] so 'gender equality' should not be used as a synonym for 'women's empowerment'.

Similarly, 'gender-based violence' refers to violence that occurs due to a person's gender, or when victims are predominantly one gender. This includes both men and women, but often "**Gender-based violence** and **violence against women** are two terms that are often used interchangeably. . . "[46]

Using the term 'gender-based violence' when specifically referring to women, undermines the protection of men's rights by superficially appearing to include men but, in practice, excludes men.

The Commission's public communications can send indirect or implied messages to men and men's advocates. It is poor practice to:

- Only have messages about gender-issues directed at women, or gender-diverse people. This implies that men are not part of the Commission's work;
- Ignore gender for issues that disproportionately affect men. This prevents policymakers from meeting their obligations to ensure equal rights for men.
- Have more messages about men as duty-bearers, or their responsibilities, compared to messages about men as rights-holders. This sends the message that the Commission does not see men as rights-holders.

See Chapter 8, Reporting, on page 61, for more information.

4.2 External barriers

The Commission should work to address barriers to the protection and promotion of human rights of men and boys in the wider society.

4.2.1 Bias in the human rights system

Men's rights are often neglected in the wider human rights system. For example:

The United Nations Global Study on Children Deprived of Liberty[44]:

> Some adults are in deep denial of the gender issue when boys are at the losing end of the disparities. . . Sad to say, there is outright sex discrimination against boys in the [Children's Rights] movement.

Male Rape and Human Rights[75]:

> Despite the grave and widespread nature of sexual violence against men and boys, the current international human rights framework is inadequate for addressing this problem... No human rights instruments explicitly address sexual violence against men.

Bias against men's issues within the United Nations and the World Health Organization: A content analysis[45]:

> The results show men's issues are given less attention than women's issues by the UN and WHO... Therefore, the observed differences could have two possible explanations: (a) lack of awareness of men's issues by UN and WHO staff, or (b) bias (conscious or unconscious) against men's or in favour of women's issues by UN and WHO staff.

The Commission should work to highlight and overcome bias against men in the wider human rights system.

4.2.2 Attitudes that devalue men's rights

People's attitudes and beliefs that undervalue men's rights are a barrier to addressing men's rights issues. The Commission should combat beliefs that devalue men's human rights.

In the *Amman Declaration and Programme of Action*[52], NHRIs have agreed to education, promotion and awareness-raising activities on equal rights for women and men (gender equality) and to eliminate prejudices against women and men:

> The NHRIs assembled agreed to the following broad principles and areas of work...
>
> Undertake education, promotion and awareness-raising activities on... gender equality and relevant international standards. Particular attention should be paid to eliminating prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority of either of the sexes or on stereotyped roles for men and women.

Some examples of attitudes and beliefs that negatively impact the human rights of men and boys are the following:

Myth – Gender equality is about women: There is a widespread belief that gender equality is only, or overwhelmingly, about women. This idea undermines men's right to equality. For example, Dr. Jackie Blue's statement: "Gender equality is about accepting that at birth, half of us are intrinsically discriminated and treated differently based on sex".[3] The Commission should combat this belief and raise awareness of men's gender inequalities.

Myth – Gender equality is a zero sum game: A common attitude is that gender equality is a zero-sum game. That is, we cannot help both men and women at the same time. For example, Paula Bennett, in her role as Minister for Women equates having a Ministry for Men with having no Ministry for Women. "In just about every speech I have given... I get someone from the audience ask me if there is a Ministry for Men. My answer is simple. When we have closed the gender pay gap and women aren't predominantly the victims of domestic and sexual violence I will look to close down the Ministry for Women."[1] The Minister did not see the possibility of having a Ministry for Women *and* a Ministry for Men.

The Commission should combat this belief and raise awareness that addressing men's rights can be done at the same time as addressing women's rights and does not undermine women's rights.

Myth – Women's rights issues should be solved before men's rights issues: A common belief is that women's rights are more important than men's rights, so women should have their human rights issues dealt with first. For example, in response to a request for a debate about issues like male suicide on International Men's Day, UK MP Jess Phillips said: "When I've got parity, when women in these buildings have parity, you can have your debate. And that will take an awfully long time".[33]

The Commission should combat this belief and raise awareness that all rights are equal and men's rights and women's rights are equally important.

Male privilege: The belief that men, as a group, receive unearned benefits from society is a stereotype that undermines the protection of men's rights. In some situations, men may receive unearned benefits, but in other situations they face undue hardships. An objective assessment of human rights requires accepting that all people can suffer human rights violations. See Prioritisation & Vulnerable Groups on page 71 for more information.

4.2.3 Human rights issues labelled as women's issues

Labelling certain issues as women's issues creates a barrier for men who are also affected by those issues. The Commission should ensure their work empowers men who are victims of issues predominately affecting women.

For example, the UK Government's categorisation of male victims of family and sexual violence as victims of "violence against women and girls" disempowers male victims. See *Supporting male victims of crimes considered violence against women and girls*[60]

Example of poor practice: In *Human Rights in New Zealand; Ngā Tika Tangata O Aotearoa*, the Commission placed sexual violence in the *Women's*

Rights section. This meant that an issue for male victims was only mentioned in the women's rights section.

> The availability of culturally appropriate services and services for diverse population groups (including Mäori, Pacific people and ethnic communities, including refugees, people with disabilities, **men** and young people) is uneven and has been identified as a gap in services.[10]

4.2.4 Lack of knowledge about men's rights

Lack of knowledge about men's rights in the Government, NGOs, and the public creates a barrier to protecting men's human rights. The Commission should work to increase knowledge and expertise about men's rights in the Government, NGOs, and the public.

See **Capacity building**, on page 33, for more.

4.2.5 Lack of jurisprudence and guidance

The lack of jurisprudence in men's rights makes protecting men's rights harder. Women's rights has a large body of jurisprudence and guidance that decision makers can draw upon. For example, the Committee on the Elimination of Discrimination against Women has made thirty-nine general recommendations outlining the obligations of States to women and girls. There are no documents specifically outlining States' obligations to men and boys. Similarly, General Comments from the Human Rights Committee[21] and the Committee on Economic, Social, and Cultural Rights[65] on equality between women and men overwhelmingly address the State's obligations to women.

The Commission should:

- Encourage the development of formal mechanisms to address men's rights;
- Identify existing jurisprudence and guidance on men's rights and refer to it in its reports and advice to make it more widely known;
- Identify and take advantage of opportunities likely to create jurisprudence and guidance for men's rights.

Chapter 5

Collaboration and cooperation

Part of the Commission's function is "to consult and co-operate with other persons and bodies concerned with the protection of human rights".[31] Accordingly, the Commission's Human Rights Policy says "The Commission will engage appropriately with stakeholders and communities so they can be involved in the development of solutions to issues that affect them".[14]

"Some groups of rights holders do not have well-resourced civil society organisations supporting them and need to be engaged with directly by the Commission."[19] Men do not have well-resourced civil society organisations, like *The National Council of Women of New Zealand*.

The Commission should 'develop, formalise, and maintain regular, constructive and systematic working relationships"[62] with men's advocates, and other community groups that are concerned with the needs and well-being of men and/or boys.

The Commission must engage with men and men's advocates to:

- Realise men's right to participate in public affairs;
- Ensure men, and men's advocates, have meaningful input in the Commission's decisions that affect men.
- Ensure policies and programs work for men and boys;
- Ensure the Commission is well-informed about the human rights issues for men and boys;
- Ensure the Commission's promotion and communication are sensitive to men's needs and not tone-deaf or harmful.
- Ensure the Commission has a network of agencies to consult with, and to refer male victims to;
- Increase openness, transparency and trust of the Commission.

5.1 Meaningful participation

The Commission's engagement with men and men's advocates should be *meaningful*. Meaningful participation means that consultations with men and men's advocates can influence the decisions made by the Commission.

Meaningful participation should include:

- Explicit inclusion of men's rights issues in public consultations – i.e. telling the public that the Commission wants to know about men's issues;
- Asking men about their experiences *as men*;
- Including men's "interests, needs and priorities"[1] in consultations;
- Evaluation of the participation process to ensure consultations result in better decisions.

The Global Alliance of National Human Rights Institutions says "meaningful participation... at all levels is important to ensure an understanding of, and access for, a significant proportion of the population."[62]

5.1.1 Poor Practice

In the 2019 UPR cycle, the Commission had a public consultation with the disabled community that excluded disabled men. The Commission describes their consultation with the disabled community:

> People with Disabilities The Commission held two consultations with disabled women in Auckland and Wellington. The key issues raised were low levels of employment, access to education, violence and abuse and data collection.[16]

5.2 Including men in your organisation

The Paris Principles[39] are the minimum standards for National Human Rights Institutions. The principle of *pluralism* requires NHRIs to reflect broader society. GANHRI highlights the importance of a diverse staff:

> A diverse decision-making and staff body facilitates the NHRI's appreciation of, and capacity to engage on, all human rights issues affecting the society in which it operates, and promotes the accessibility of the NHRI for all citizens.
>
> Pluralism refers to broader representation of national society. Consideration must be given to ensuring pluralism in the context of gender, ethnicity or minority status.[62]

[1] From UN Women's definition of gender equality in[78]

A Manual on National Human Rights Institutions recommends "the composition of the staff, and of any advisory committees or working groups, should reflect the broader community to ensure that the NHRI itself is able to hear the broadest range of voices and views".[48] The *Office of the High Commissioner for Human Rights*,[54] the *Committee on Elimination of Discrimination Against Women*[25] and the *Commonwealth Secretariat*[73] recommend NHRIs have a gender-balanced staff.

The Commission should aim for a gender-balanced staff and include staff members who *act in the interests* of men and boys. Committees and working groups should also be gender balanced and include members who act in the interests of men and boys.

5.3 Acting in the interests of men

A man will not necessarily act in men's interests or be an expert on men's human rights. Similarly, experts in men's human rights are not necessarily men. Therefore, gender-balance itself is not sufficient to ensure that men's needs and interests are represented. The Commission should ensure that a significant proportion of its staff, working groups, committees, and consultations, etc. include people acting in men's interests. "Involving stakeholders representing a *diversity of interests* ensures that pluralism is built into the process and that civil society buys into the concept of an NHRI".[54]

Chapter 6

Capacity building

The Commission should improve its capacity to protect and promote men's rights, as well as supporting others to constructively engage with men's rights issues.

6.1 Building the Commission's Capacity

The Commission should increase staff expertise in men's human rights issues, and address shortcomings in expertise by engaging with experts.

Staff expertise: Commission staff should have a knowledge of men's rights. Without such knowledge, staff can unwittingly make men's human rights issues worse, alienate men and men's advocates, provide poor advice to the Government and civil society, and reinforce gender myths and stereotypes.

National Human Rights Institutions Best Practice says:

> NHRI staff should be properly trained so as to respond sensitively to human rights issues or violations related to sex or gender.[73]

Amman Declaration says NHRI staff should be trained on gender equality — which includes the needs of men and boys:

> The NHRIs assembled agreed to the following broad principles and areas of work: Prioritize and mainstream... gender equality throughout all their strategic planning, processes, policies, programmes and activities with a view to establishing sustainable interventions to achieve gender equality. **This would also include developing and implementing training for NHRI members and staff on gender equality** and reviewing their internal structures with a view to achieving gender equality at all levels and in all aspects of their work[52]

Staff knowledge about men's rights should include:

- The significant human rights issues for men and boys, including the prevalence of those issues;
- The barriers for addressing men's rights issues;
- Issues of sensitivity when dealing with male victims;
- How national and international human rights law applies to men and boys;
- How human rights principles, like universality, non-discrimination, and equality, apply to men;
- Which men's advocates and organisations are available to engage with the Commission;
- Which service providers are available for male victims of human rights abuses.

Engagement with experts on men's rights: The Commission can increase it capacity by engaging experts on men's human rights issues. See **Collaboration and cooperation**, on page 29, for more details.

6.2 Building capacity in Government

The *Paris Principles*[39] state that NHRIs have a responsibility to advise the Government. This is reflected in the Human Rights Act 1993. Part of the role of the Commission is to advise the Government on human rights, "including the desirability of legislative, administrative, or other action to give better protection to human rights and to ensure better compliance with standards laid down in international instruments on human rights".[31]

A Manual on National Human Rights Institutions says:

> NHRIs' advice can be directed to "the Government, Parliament and any other competent body". "Government" and "Parliament" are clear enough. "Government" includes individual ministers as well as the Government collectively and it should also include ministries, departments and government agencies, including the police, prison authorities and the armed forces, unless the legislation exempts any of them from the jurisdiction of the NHRI. "Parliament" will include parliamentary committees, parliamentary officers and other parts of the parliamentary structure. It should also include individual members of parliament and the parliamentary leaders of political parties.[48]

The Commission should include men's human rights in their advice to the Government. Including:

- Informing the Government on it's obligations to men under international human rights instruments. For example, "identify whether relevant laws are aligned with their human rights obligations and are being effectively enforced... "[41], and to ensure men equally enjoy their rights with women;
- Explaining the consequences of law and policy on men and boys;
- Identifying where Government policy violates men's human rights.

6.3 Building public & civil society capacity

The Commission should work to increase the capacity of the public and civil society to understand and advocate for men's rights. "NHRIs should provide technical training and expertise to help build the capacity of other democratic institutions".[73]

In the *Amman Declaration* NHRIs agreed to:

> **Undertake education, promotion and awareness-raising activities on... gender equality** and relevant international standards. Particular attention should be paid to eliminating prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority of either of the sexes or on stereotyped roles for men and women.

The Commission can build public and civil society capacity by:

- Providing education on:
  - The significant human rights issues facing men and boys;
  - The relevant human rights instruments for men's rights;
  - The national laws protecting men's rights;
  - Mechanisms available to address violations of men's rights;
  - How individuals or groups can respond if they believe men's rights have been violated;
- Combating negative stereotypes about men and boys.

6.4 International & regional engagement

The Commission should use their participation in international and regional human rights forums as part of their strategy to protect and promote men's rights. The Commission should encourage and collaborate with other NHRIs to protect and promote men's rights.

It can do this by, for example:

- Ensure men's human rights issues are included in its reports to treaty bodies;
- Promoting the inclusion of men's rights issues in state reports to treaty bodies and in stakeholders reports to treaty bodies;
- Including training for civil society on how to include men's rights issues in their shadow reports to treaty bodies;
- Collaborating with other NHRIs to raise men's rights issues in regional and international forums;
- Encourage other NHRIs to ensure men's rights issues are part of their work.

See Chapter 8, Reporting, on page 61, for more information.

The *Amman Declaration* says NHRIs have agreed to promote gender equality (which includes the needs and interests of men and boys) in their international and regional work:

> The NHRIs assembled agreed to the following broad principles and areas of work...
>
> Prioritize and promote... gender equality through their engagement with all international and regional human rights mechanisms, and in their engagement with global processes such as the post-2015 development agenda, the ICPD Beyond 2014 Global Review, the Beijing Platform of Action, and the Vienna Programme of Action;[52]

Chapter 7

Monitoring & Investigations

> On a general level, the idea of measuring human rights is inspired by the thinking, once well summed up by the eminent development thinker and practitioner J.K. Galbraith, that **"if it is not counted, it tends not to be noticed."** [42]

The Human Rights Act 1993 requires the Commission to monitor the Government's compliance with international human rights instruments. These instruments identify men's right to equality, non-discrimination, and "equal and effective protection against discrimination".

Universal Declaration of Human Rights: Preamble — Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights, in the dignity and worth of the human person and in the equal rights of men and women and have determined to promote social progress and better standards of life in larger freedom,

International Covenant on Civil and Political Rights: Article 3 — The States Parties to the present Covenant undertake to ensure the equal right of men and women to the enjoyment of all civil and political rights set forth in the present Covenant.

International Covenant on Economic, Cultural and Social Rights: Article 3 — The States Parties to the present Covenant undertake to ensure the equal right of men and women to the enjoyment of all economic, social and cultural rights set forth in the present Covenant.

Article 26 — All persons are equal before the law and are entitled without any discrimination to the equal protection of the law. In this respect, the law shall prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.

The *Human Rights Committee* emphasises the importance of equal enjoyment of civil and political rights in *General Comment 28*[21]:

> Article 3 implies that all human beings should enjoy the rights provided for in the Covenant, on an equal basis and in their totality. The full effect of this provision is impaired whenever any person is denied the full and equal enjoyment of any right. Consequently, States should ensure to men and women equally the enjoyment of all rights provided for in the Covenant.[1]

The *Committee On Economic, Social and Cultural Rights* highlights the cross-cutting nature of equal enjoyment of rights in *General Comment 16*[65]:

> Article 3 is a cross-cutting obligation and applies to all the rights contained in articles 6 to 15 of the Covenant.[2]

The Committee goes on to say that failing to ensure that men have equal enjoyment of their rights is a violation of that right.

> The principle of equality between men and women is fundamental to the enjoyment of each of the specific rights enumerated in the Covenant. Failure to ensure formal and substantive equality in the enjoyment of any of these rights constitutes a violation of that right.[3]

The Commission must monitor men's enjoyment of their rights to ensure that the Government is compliant with these treaties.

7.1 Gender sensitive monitoring

The Commission's monitoring must be gender-sensitive. That is, able to detect how human rights issues affect women and men differently. The *Manual on Human Rights Monitoring* says a gender perspective ensures that all violations against women and men are recognised and accounted for:

> Integrating a gender perspective in human rights monitoring is a process to ensure that all violations against men and women of all ages and sections of society are recognized and accounted for. It is also a strategy for making women's as well as men's experiences and concerns an integral dimension of the design and implementation of the monitoring cycle. It helps to better understand the causes and types of human rights violations and, hence, the measures required for prevention and protection.
>
> Integrating gender implies a **proactive** attitude of looking at and

[1] CCPR General Comment 28 – paragraph 2
[2] CESCR General Comment 16 – paragraph 22
[3] CESCR General Comment 16 – paragraph 41

> analysing how situations affect women, girls, men and boys differently. It is also about making such differences **visible** throughout the monitoring cycle. *Emphasis in original*

When the Commission detects and reports on these differences, it allows duty-bearers to address the human rights issues for men and boys. "A gender-sensitive analysis is therefore instrumental to tailoring specific and action-oriented recommendations on the responses that are needed to address human rights violations, protect victims' rights and contribute to the prevention and non-recurrence of such violations."[43]

7.1.1 Avoid making false assumptions

The Commission should avoid making assumptions about how gender relates to human rights issues. The *Manual on Human Rights Monitoring*[57] warns human rights workers to avoid making wrong assumptions about gender.

> **HROs should avoid making wrong assumptions**, such as:
>
> • Identifying all women as victims.
>
> • Labelling all women as a "group" that is inherently "vulnerable" or "marginalized" in its entirety and in all circumstances. Women are rights holders and active members of society...

Other false assumptions might include:

- Women's rights issues, such as domestic violence, don't significantly affect men as well;
- Gender-neutral monitoring policies are sufficient to capture the extent of men's human rights issues;
- Having men in decision-making positions is sufficient to address men's human rights issues.

7.1.2 Ensure men's experiences are captured

The Commission's monitoring should include a plan to capture men's experiences. Monitoring methods "must be developed in such a way as to ensure that the diversity of various groups of women and men and their specific activities and challenges are captured."[24] *Integrating a Gender Perspective into Human Rights Investigations* highlights the importance of ensuring that everyone's concerns are captured:

> A gender-sensitive interpretation of the mandate and definition of the scope of the investigation is critical at this early stage to ensure that the outcome of investigations **fully considers the gender dimension of the human rights situation and violations**

> **and does not exclude key concerns that particularly or differently affect persons of a particular sex or gender**[43]

Men may not understand their experience of a human rights violation as a human rights violation, or they may understand or explain it in a different way than the monitor expects. It is important for the Commission to identify and address these issues early in the monitoring process.

7.1.3 Ask men about their experiences as men

The Commission should ensure that they ask men about their experiences *as men*. Asking men about their experiences as men allows the Commission to identify issues that affect men because they are men, such as discrimination. *Integrating a Gender Perspective into Human Rights Investigations* recommends asking gender-specific questions:

> [I]t is important to always include questions aimed at gathering information on how a particular situation may affect women, men, girls and boys differently. Remember that the gender dimension of violations often remains invisible if not properly researched.[57]

It is important for the Commission to encourage and facilitate men to talk about their experiences *as men*. The goal of asking men about their experiences as men is to identify men's gender-specific issues. Unfortunately, some men may find it difficult to talk about their experience as a man because they have not talked to other men about the issues, or they are unfamiliar with the issue due to little public recognition of it, or they feel that women victims deserve more attention. The Commission should address these types of issue when planning to engage men.

7.1.4 Recognise men are not a homogenous group

Gender sensitivity requires recognising that men come from a wide range of different backgrounds. The Commission should ensure their monitoring captures the situation for all kinds of different men. Subgroups of men may face gender-specific issues that are not visible when considering men as a whole. For example, *Integrating a Gender Perspective into Human Rights Investigations* says to "to note intersecting forms of discrimination which place specific groups of women, girls, men and boys at a heightened risk of certain violations."[43]

7.2 Including men throughout the monitoring process

The Commission should consider the needs of men and boys at every stage of the monitoring process. The *Manual on Human Rights Monitoring* says men's

experiences and concerns should be integral to the design and implementation of the monitoring cycle:

> Integrating a gender perspective... is also a strategy for making women's as well as men's experiences and concerns an integral dimension of the design and implementation of the monitoring cycle. It helps to better understand the causes and types of human rights violations and, hence, the measures required for prevention and protection.[57]

Monitoring has four stages, preparation, information gathering, analysis, and reporting.

7.2.1 Preparation

Effective monitoring of men's rights requires thorough preparation. During the preparation stage, the Commission should[4]:

- Ensure that the systems and processes for monitoring human rights are gender-sensitive and will be able to detect gender-specific issues for men. Include a gender-analysis of the monitoring plan to ensure men's human rights issues will be captured;
- Include men in the staff responsible for monitoring. That is, there should be gender-balance in the monitoring team;
- Have an expert in men's rights involved in the monitoring team, and train team members in men's human rights issues;
- Identify situations where men's experiences are unacknowledged, invisible or minimised and address this in planning stage;
- Identify obstacles to monitoring men's human rights and plan to minimise or overcome these obstacles;
- Identify sources of information on men's human rights issues.

7.2.2 Information Gathering

During the information gathering phase, the Commission should[5]:

- Identify a wide range of potential sources of information on men's human rights issues;
- Coordinate and collaborate with men's groups and men's advocates;
- "Ensure that interviews are conducted in such a way that gender-specific questions are asked and can illustrate and inform on the differentiated impact of the human rights violations on women, girls, men and boys";

[4]List adapted from Integrating a Gender Perspective into Human Rights Investigations – Guidance and Practice

[5]List adapted from Integrating a Gender Perspective into Human Rights Investigations – Guidance and Practice

- Identify the challenges that might prevent or inhibit men's human rights issues being identified. For example, stigma associated with certain violations;
- "Be aware of the team members' own biases, prejudices and stereotypes that may lead to their overlooking important gender-sensitive information".

Integrating a Gender Perspective into Human Rights Investigations says that monitoring should be proactive to ensure that monitoring captures issues for men and boys:

> Investigation teams should be proactive in reaching out to different types of sources and intermediaries, making sure the selection of sources and intermediaries is conducive to gathering information on... gender issues. It is important to remember, when identifying sources, not to rely too heavily on entities or service providers that target only one segment of the population. **For example, psychosocial services that only target women and girls may not be good sources of information on trauma suffered by men or boys**[43]

The Commission may face challenges in including men's rights in monitoring, for example:

- Locating, accessing, and approaching men affected by violations. Men are often reluctant to come forward if they have been victims of domestic or sexual violence. In some cases, men will not realise they are victims, or believe their experiences are not important;
- The under-reporting of some men's rights violations;
- Monitoring violations against men that take place in the private sphere;
- Lack of services to which to refer male victims of domestic and other violence;
- Little or no reliable information regarding the situation with men's rights;
- Staff's limited knowledge of men's rights issues and gender concepts; their own gender stereotypes, biases, perceptions and behaviours.

The Commission should have strategies for overcoming challenges in monitoring men's rights, for example:

- Explicitly asking about men's human rights issues to ensure participants are aware that the Commission is interested in men's human rights issues;
- Having public consultations at times when men are most likely to attend. Men tend to work longer hours than women, so they may find it harder to attend;
- Training Commission staff on men's rights issues to overcome staff's lack of knowledge, and their preconceived ideas or biases;

- Be aware of unintentional bias, including gender bias. Be transparent about intentional biases and why you are adopting them by asking[50]:
  - Whose voices may be silenced or ignored?
  - What considerations impact on the data?
  - What are the lenses through which data is analysed?

7.2.3 Analysis

The Commission should analyse human rights issues to identify gender-related issues, including those for men and boys. "[A]dequate gender analysis can prevent the overlooking of critical human rights violations or abuses. For example, a lack of knowledge of standards applying to women in detention or male victims of sexual violence could result in overlooking specific obligations of duty bearers and making invisible violations suffered by segments of society."[43] Gender analysis can "contribute to the better tailoring of recommendations and the response to violations."[43] Gender analysis should identify:

- Disparities between men and women, including where men are disadvantaged;
- The causes of the disparities, for example, discrimination against men;
- Gender-specific aspects of human right issues, such as the differences in how men and women respond to rights violations;
- The consequences to the enjoyment of rights, such as increased risk of further violations.

7.2.4 Reporting

The Commission should include men's human rights issue in their reporting. Chapter 8, **Reporting** on page 61 covers this in detail.

7.3 Monitoring 'respect', 'protect' and 'fulfil'

The Government is required to *respect*, *protect* and *fulfil* human rights. The Commission should monitor human rights situation at these different levels.

Monitoring the obligation to *respect* human rights means monitoring the Government's acceptance and commitment to human rights standards.

- What evidence is there that the Government is committed to protecting, respecting, and fulfilling men's rights?
- Has the Government adopted international human rights treaties?
- Is there legislation to protect, respect and fulfil men's rights?
- What government departments / organisations exist to protect, respect, and fulfil men's rights?

- What structures are in place for women that men would also benefit from (e.g. men's health strategy required by legislation)
- Is there any direct discrimination against men in law and policy?

Monitoring the obligation to *protect* means monitoring the Government's conduct and its efforts to meet their obligations.

- Are Government commitments translated into practical measures to respect and fulfil men's rights?
- Are the laws, policies, and programmes that protect men's rights functioning properly? For example:
  - Is the Bill of Rights Act Section 7 process identifying inconsistencies with the Act when they affect men?
  - Is the gender budgeting process identifying areas to address disparities for men and boys?
- Do politicians and public servants understand their responsibilities to respect and fulfil men's rights?

Finally, monitoring the obligation to *fulfil* means monitoring *outcomes* or *results*. Do men enjoy their rights *in practice*? For example, do men face disparities in areas like:

- Life expectancy, injuries, addictions, and other health measures;
- Primary, secondary and tertiary education outcomes;
- Suicide rates;
- Workplace accidents;
- Violence victimisation.

7.4 Baseline for men and boys

The Commission should conduct a baseline survey of the human rights situation for men and boys. Without a baseline, the Commission cannot track the progress or regression of these rights. *National Human Rights Institutions – History, Principles, Roles and Responsibilities* says:

> Most institutions monitor progress over time. This requires the monitor to know what the situation was at a given point in time (the baseline) and what factors (indicators) will demonstrate that there have been positive changes. Sometimes, monitors will also set goals (benchmarks) for those involved in promoting and protecting the right. This approach may be used for all categories of rights, but is particularly useful in tracking achievements relating to economic, social and cultural rights. This is because many of these rights are meant to be realized progressively.[54]

7.5 Maintaining institutional knowledge

The Commission should have a system to maintain institutional knowledge of men's rights as part of their monitoring practice. This is essential for monitoring progressive realisation of rights. The Commission should have a system to ensure that leadership and staff can access the accumulated knowledge on men's rights.

See Chapter 6, Capacity building, on page 33 for more information.

7.6 Monitoring gender equality for men

Gender equality is included in both CCPR and ICESCR. Article 3 of both treaties require States to ensure equal enjoyment of rights between women and men. The Commission should monitor the Government's compliance with its obligation to ensure that men have equal enjoyment of their rights. "[N]ational human rights institutions... should investigate and address alleged violations relating to article 3 and provide remedies for such violations."[65]

General Comments from both the *UN Human Rights Committee* and the *Committee on Economic, Social and Cultural Rights* expand on States' obligations to ensure equal rights for women and men in General Comments. These documents outline the areas that the Commission should be monitoring with regard to equal rights for men.

The Commission should refer to ICESCR General Comment 16[65], and CCPR General Comment 28[21] when monitoring gender equality. This includes:

- Direct or indirect discrimination against men and the effect of gender-neutral policies and programs on men's enjoyment of their rights;
- Efforts to eliminate prejudices against men;
- Measures to protect men from discrimination, such as legislation or public institutions;
- Areas where men lack equality with women *in practice*;
- The effects of policies and practices on men, including apparently gender-neutral policies and practices;
- If the Government has taken "all necessary steps" to enable men to enjoy their rights;
- If the Government has taken steps to remove obstacles and taken account of the "factors which impede" men's equal enjoyment of their rights.

7.7 Monitoring discrimination against men

In international human rights law, States have a non-derogable and immediate requirement to eliminate discrimination against men. Discrimination consti-

tutes any distinction, exclusion, restriction, preference, or other differential treatment that is directly or indirectly based on prohibited grounds of discrimination and that has the intention or effect of nullifying or impairing the recognition, enjoyment or exercise by all persons, on an equal footing, of all rights and freedoms.[20] [66]

States must also "adopt the necessary measures to prevent, diminish and eliminate the conditions and attitudes which cause or perpetuate substantive or de facto discrimination".[66] The Commission should monitor discrimination against men and boys to ensure compliance with international human rights treaties. Including monitoring conditions and attitudes that cause or perpetuate discrimination against men and boys.

7.7.1 International human rights on discrimination

General Comments from both the *UN Human Rights Committee* and the *Committee on Economic, Social and Cultural Rights* expand on States' obligations to eliminate discrimination against women and men in General Comments. These documents outline the areas the Commission should be monitoring with regard to equal rights for men.

The Commission should refer to CCPR General Comment 18[20], and ICESCR General Comment 20[66] when monitoring discrimination. This includes:

- The extent that men have equality under the law & equal protection of the law;
- The extent that men have equal and effective protection against discrimination;
- Whether the Government is reporting de jure and de facto discrimination against men to the United Nations;
- Do laws or policy documents discriminate against men?
- Has the Government adopted the necessary measures to prevent, diminish, and eliminate the conditions and attitudes which cause or perpetuate substantive or de facto discrimination against men?
- Are there situations where the Government is required to adopt special measures to attenuate or suppress conditions that perpetuate discrimination against men?
- Is there direct discrimination against men?
- Is there indirect discrimination against men, for example, gender-neutral policies that disproportionately negatively affect men;
- Is there systemic discrimination against men? For example, legal rules, policies, practices or predominant cultural attitudes in either the public or private sector which create relative disadvantages for men.

7.7.2 Disaggregated data

Disaggregated data are essential to assess discrimination. The Commission must collect and evaluate disaggregated data. *Integrating a Gender Perspective into Human Rights Investigations – Guidance and Practice* says:

> [I]nvestigators should seek to obtain disaggregated data. ... This is key to determining the gender specificities of human rights violations as well as to giving an accurate account of the particular experience of women, girls, men and boys and to identifying potentially discriminatory practices or targeting.[43]

Men are more vulnerable to gender-related human rights violations if disaggregated data are not collected or included in reports. Duty-bearers cannot respond to men's rights issues if they do not know about them. The *Manual on Human Rights Monitoring* emphasises the importance of disaggregated data:

> Lack of access to disaggregated information and statistics may render marginalized communities and sectors of the population even more vulnerable as their actual situation would not appear in reports and aggregated charts, and hence cannot inform policy-making processes. Disaggregated information can also reveal the de facto discriminatory nature of some policies and laws that would otherwise appear neutral.[57]

Human Rights Indicators – A Guide to Measurement and Implementation concurs:

> A related concern is the lack of appropriate statistics at the required level of disaggregation to support analysis of non-discrimination and equality—a principal focus in any human rights assessment.[42]

Enough resolution to identify men's issues

Sex-disaggregated data is not necessarily sufficient to identify gender issues. For example, the average score for boys and girls for science in the PISA 2022[36] assessment was about the same. However, there were more boys in the lowest and highest achievement groups. The average score masks the problems for low-performing boys.

7.7.3 Gender discrimination and other characteristics.

The Commission should monitor how multiple forms of discrimination affect men. For example, some groups of men are subject to discrimination on the grounds of sex *and* race. The Commission should not assume that the situation for men in general or for specific groups of men is the same for other groups of men. For example, men in general may not face discrimination in employment, but men in female-dominated professions might. Likewise, men generally may not face discrimination when renting a house, but among certain ethnicities,

landlords may prefer women tenants over men. There may even be specific situations where men generally receive more favourable treatment than women, but for a minority group, men may receive poorer treatment than women from the same minority group.

For example, the Commission previously identified that men made more complaints to the Commission about race.[10] This could indicate that men face more problems with racism than women.

7.7.4 Challenges in monitoring discrimination against men

The Commission should take into account the difficulties and challenges in monitoring discrimination against men. For example:[6]

- Men who are victims of discrimination do not see their experience as discrimination. For example, male victims of partner violence may not see the lack of services for them as discrimination because they believe that they are not 'real victims';
- Discrimination against men, is seen as normal and overlooked, or tolerated. For example, men being over-represented in prison. While observers see over-representation of some populations, like ethnic minorities, as discrimination, observers do not see men's over-representation as discrimination;
- Resistance to monitoring discrimination against men from people who believe:
  - Discrimination against men does not exists because they define discrimination to only affect those without power and they believe men have power;
  - Monitoring discrimination against men is a zero-sum game that takes resources way from women.

7.7.5 Temporary special measures

A 'temporary special measure' is a difference in treatment to alleviate the effect of discrimination from certain groups. The Commission should monitor temporary special measures in two ways. Firstly, to identify areas where temporary special measures are appropriate for men and boys and whether or not they are being implemented. Failing to apply temporary special measures to men when they would be applied to women in the same situation is discrimination. Secondly, to ensure that temporary special measures for women are properly implemented and not discriminatory against men.

[6] Adapted from: Human Rights Indicators – A Guide to Measurement and Implementation

CEDAW General Recommendation 25 says:

> As steps are being taken to eliminate discrimination against women, women's needs may change or disappear, or become the needs of both women and men. Thus, **continuous monitoring of laws, programmes and practices directed at the achievement of women's de facto or substantive equality is needed so as to avoid a perpetuation of non-identical treatment that may no longer be warranted**.[8]

Temporary special measures must:

- Be temporary
- Be necessary
- Not be based on stereotypes and assumptions
- Be carried out in good faith
- Be tailored to reduce the disadvantage of the target group
- Consider the impact on people other than the target group
- Be proportional

7.8 Areas of monitoring

This section highlights areas that the Commission should be monitoring that are particularly relevant to men and boys.

7.8.1 Legislation

The Commission states:

> In a free and democratic society (such as New Zealand purports to be) laws should be non-discriminatory on their face, unless the discrimination is demonstrably justified.[11]

However, New Zealand has laws that discriminate against men. For example, the Commission previously identified Section 194 of the Crimes Act 1961 (male-assaults-female) as unnecessarily gendered, saying "The law should reflect the seriousness of the assault and not the gender of the victim and perpetrator."[12]

The Commission should monitor New Zealand law for violations of men's rights. There are two ways to monitor the law:[57]

- Monitoring the legal framework and law reform processes with a view to ensuring conformity with international and regional standards and norms including equality and non-discrimination; and
- Monitoring the implementation of legislation to ensure men's rights are protected and fulfilled.

The Commission should monitor legislation for[7]:

- Discrimination against men and boys;
- Lack of, or inadequate, legislation prohibiting discrimination based on a comprehensive definition of discrimination against men;
- Inadequate legislation on paternity leave, different retirement ages for women and men, discriminatory treatment with regard to pensions and other work-related benefits;
- Discrimination in (and a lack of gender-sensitive) procedural laws and sentencing;
- Discriminatory laws in relation to marriage, divorce, the custody of children, legal age for marriage, inheritance;
- Laws recognising or permitting harmful practices, for example circumcision;
- Laws that perpetuate harmful gender stereotypes;
- Is the law known to those who should enforce it, and to rights holders? Is it justiciable? Is it applied by courts?
- Are the structures and mechanisms provided for by law in place? Do they function? Do rights holders use them?
- Is the law achieving its objectives? Should it be changed to achieve more or to adapt to new circumstances?
- If law reform is envisaged, is there a risk that the amended law may be more regressive than the existing one? What are the forces at play and how can they be influenced? Do all stakeholders participate adequately in the law reform process?

7.8.2 Gender stereotypes

States are required to "take steps aimed directly at the elimination of prejudices, customary and all other practices that perpetuate the notion of inferiority or superiority of either of the sexes, and stereotyped roles for men and women."[65] The Commission should monitor gender stereotypes and attitudes towards men and boys.

The Commission should monitor whether Government policy and practice are based on or reinforce stereotypes and how this impacts men's exercise and enjoyment of their rights. For example, the Government's *Specialist Family Violence Organisational Standards* reinforces the stereotype of men as violent thugs. The *Standards* say men "dominate, oppress, and exploit women".[67] This is not true; 83% of men and 80% of women agree that "gender equality in Aotearoa New Zealand is a fundamental right".[59]

[7] List adapted from *Manual on Human Rights Monitoring*.

The *Manual on Human Rights Monitoring* says monitoring women's rights entails identifying stereotypes. This also applies to men:

> Monitoring women's human rights also entails identifying and analysing gender stereotypes and how they impact on the enjoyment of rights.[57]

Stereotypes about men could include:

- Male deficit model (toxic masculinity);
- Male privilege, or the assumption that men are always better off than women.
- Women being a vulnerable/marginalised group while men are not;
- In the media, "fathers are often shown as confused, stupid or absent"[35]
- "Many fathers are deeply resentful of broad-brush rules for protecting children that imply that all men are potentially dangerous, and of other portrayals that give an exaggerated picture of fathers as neglectful of their families.";[35]
- Men are violent;
- Men are active, complicit and culpable, where women are passive, victims of circumstance;
- Men's suffering is not as important as women's;
- Men "dominate, oppress, and exploit women";

7.8.3 Participation in political and public life

Men have a right to advocate for themselves. Whether or not men actively claim and exercise their rights is an indicator of men's empowerment and levels of information.[27]

The Commission should monitor whether men advocate for men's rights and the barriers men face publicly advocating for their rights.

- Are men advocating for their rights as men? For example, men's right to be free from discrimination, men's right to equality;
- Are politicians and other influential people advocating for men's human rights?
- Are there human rights issues for men that are not being publicly discussed?
- Are there barriers for men to advocate for their rights, such as:
  - Protests, assaults against men and men's advocates;
  - Shutting down, cancelling men's events etc. Through political pressure or violence e.g. bomb threats;

  - Media and news reports denouncing men's advocacy;
  - Stigma for men in advocating for themselves, especially when discriminated against, or opposing sexism against men.

The Commission should "should raise awareness of the Declaration on Human Rights Defenders"[29] especially in relation to men's human rights defenders.

7.8.4 Violence against men

The government is obligated to act with due diligence to protect men from violence; however, male victims are often not treated well. A study from *Canterbury Men's Centre* found "Male victims and relevant services is at its core a human rights issue. We are discriminating as a society deciding that men are not offered relevant services wholly because of their gender."[70]

Committee on the Elimination of Discrimination against Women, General Recommendation 19 says:

> States may also be responsible for private acts if they fail to act with due diligence to prevent violations of rights or to investigate and punish acts of violence, and for providing compensation.[7]

Gender-based Violence (GBV) is violence directed towards, or disproportionately affecting, someone because of their gender or sex.[43] "**[T]he State is in breach of its human rights obligations if it fails to respond appropriately to GBV**, that is, to act with due diligence to prevent GBV, bring perpetrators to justice and ensure that victims have access to an adequate and effective remedy and full redress, including for acts or omissions by state and non-state actors and/or individuals."[43]

Gender-based Violence against men includes:

- Homicides (most victims are men);
- Administrative violence. That is, a perpetrator using the apparatus of the State to harm the victim. For example, making, or threatening to make, false claims to the police to have the victim arrested;
- A mother using access to a man's children as a threat or coercion;
- Stranger violence;
- Violence in prison;
- Homophobic attacks against gay men.

The Commission should monitor:

- Laws and policies to protect men from violence, including if there is equal protection with women;
- Governments *due diligence* to prevent violence against men;
- Equal application of the laws to protect people from violence;

- Societal attitudes to violence against men, is it seen as more acceptable than violence against women? is it seen as inevitable? Are male victims treated the same as female victims in the media and public discourse?
- Efforts to counteract societal attitudes that minimise the seriousness of violence against men;
- The education of law enforcement and public officials on the issues for male victims;
- The amount of research on male victims of violence. Is there sufficient research for policy makers to meet due diligence requirements;
- Support services for male victims, are they available and are men accessing them? What are the barriers for men to accessing services?
- Prevalence of all kinds of violence against men, including proxy violence and administrative violence.

In relation to sexual violence, the Commission should monitor:

- Laws protecting men from sexual violence. For example, is the definition of rape gendered?
- Policies and practices of the justice system and law enforcement when dealing with male sexual violence victims. Do sentencing guidelines treat the harm to male and female victims equally? Are police officers trained to deal with male victims of sexual violence, including when the perpetrator is female?
- Societal attitudes toward male victims of sexual violence, especially victims of female perpetrators. e.g. Do male victims of women see themselves as victims of crime? How many people think men cannot be raped by a woman?

The private sphere

The Government has an obligation to act with due diligence and address human rights issues in the private sphere. General Comment 16 from the *Committee on Economic, Social and Cultural Rights* states:

> States parties must take appropriate measures to eliminate violence against men and women and act with due diligence to prevent, investigate, mediate, punish and redress acts of violence against them by private actors[65]

The Commission should monitor violations of human rights against men in the private sphere, including the government's due diligence to address these violations. The *Manual on Human Rights Monitoring* says:

> Paying attention to the gender dimension of violations perpetrated in the private sphere also **means looking at violations perpetrated against boys and men**, such as sexual exploitation

> or abuse and some forms of child labour, as well as gender stereotypes about their primary role as breadwinners and not care givers, which are often overlooked.[57]

7.8.5 Treatment in the justice system

There is bias against men in the New Zealand justice system. For example, men get longer sentences than women for the same crime due to judicial stereotyping,[34] and sentencing guidelines for sexual assault treat male and female perpetrators differently.[71]

The Commission should monitor:

- Treatment of men in the justice system;
- Laws and policies that treat men differently from women. E.g. rape laws that exclude men, sentencing guidelines that punish men more or give more leniency to women;
- Treatment of male victims in the justice system. E.g. do male victims receive the same treatment as women, are they stigmatised, especially if they are victims of women;
- Application of gender stereotypes in judgement and decisions;
- De facto or substantive discrimination, including biases against men among law enforcement, prosecutors, judges and lawyers;
- Judicial gender stereotyping, when judges or other legal practitioners reach conclusions based on preconceived beliefs about women or men rather than on the basis of the facts of the case;
- Social, cultural and institutional barriers — or a lack of access — to effective, gender-sensitive remedies;

7.8.6 Education

The International Covenant on Economic, Cultural and Social Rights requires States to monitor and address de facto discrimination in education. *General Comment 13* states:

> States parties must closely monitor education – including all relevant policies, institutions, programmes, spending patterns and other practices – so as to identify and take measures to redress any de facto discrimination.[63]

For several decades, men and boys have fallen behind in education. A paper from the *Ministry of Education* states:

> Whatever the reason, the outcome is that more boys than girls are labelled as poor readers and writers and have trouble using these skills to access other parts of the curriculum.[5]

Radio New Zealand reports:

> The percentage of domestic university students who are men has reached an all-time low of 39 percent, and it is worrying Universities.[30]

The Commission should monitor:

- Disaggregated data on school completion rates, drop-out rates, expulsions and other disciplinary measures;
- Disaggregated data on academic achievement with sufficient resolution to ensure that data on under-achieving boys is captured and not obscured by boys with high achievement;
- Other obstacles that may hinder men's and boys' access to education;
- The differences in educational and scholarship opportunities granted to women and girls on the one hand and men and boys on the other;
- Discrimination against boys in treatment and marking;
- Enrolment rates in tertiary education.

7.8.7 Housing

The Commission has done much work on the right to adequate housing. To ensure that this work benefits men, the Commission's monitoring should include:

- Disaggregated data of homelessness;
- Deaths from rough sleeping;
- Discrimination against single men in renting, especially in State housing, or emergency accommodation.

7.8.8 Health

The *Committee on Economic, Social and Cultural Rights* recommends integrating a gender perspective in health policy:

> The Committee recommends that States integrate a gender perspective in their health-related policies, planning, programmes and research in order to promote better health for both women and men. A gender-based approach recognizes that biological and sociocultural factors play a significant role in influencing the health of men and women. The disaggregation of health and socio-economic data according to sex is essential for identifying and remedying inequalities in health.[64]

However, a study on men's health in 2007 found "Our current 'gendered' health strategy in New Zealand is not inclusive of men."[37]

The Commission should monitor men's health rights, for example:

- Do regulations, policies, or plans address the specific health care needs of men, such as having a men's health policy?
- Disaggregated data, ensuring that areas where men are disproportionally disadvantaged are captured. For example, amenable mortality, life-expectancy, injuries, suicide, alcohol and drug issues;
- Areas which exclusively affect males, e.g. prostate cancer, erectile dysfunction;
- Health spending for reserved for male-specific issues compared to female-specific issues;
- Policies for a medical response to violence against men, and the availability of health services staffed by health providers with training on the issue of violence against men. This includes physical and mental health care for survivors of sexual and domestic violence;
- Whether States are actively addressing and seeking to modify social misconceptions, prejudices and taboos about masturbation, wet dreams, involuntary erections, vasectomy, and male sexuality;
- The regulations, policies or plans for sexual and reproductive health care for men, including access to contraception, and restrictions that require men to seek third-party authorisation in order to access them (e.g. do men have to get their partners permission for a vasectomy);
- The availability and accessibility of publicly funded health-care services to prevent, detect and treat illnesses and conditions specific to men. For example, prostate cancer, erectile dysfunction and other male reproductive issues ;
- The extent to which health-care services are provided, and are being accessed, by men in vulnerable, marginalised or disadvantaged situations;
- Remedies available for men whose rights have been violated. Are they gender-sensitive?

Reproductive rights

In the *Amman Declaration and Programme of Action* NHRIs agreed to "Protect and promote reproductive rights without any discrimination"[52]

Reproductive Rights are Human Rights – A Handbook for National Human Rights Institutions says:

> To be effective, reproductive health programmes need to address men's... reproductive rights needs simply as human beings.[77]

The Commission should monitor men's reproductive rights, including:

- The laws and policies about men becoming parents. For example, can a man be forced to become a parent by the mother of the child? Does the law require proof that a man is the father of the child before he is forced

by the state to support the child?

- Laws and policies about men finding out they have a child and access to their children on equal terms with women;
- Laws and policies on paternal surrender;
- Are there laws protecting boys from genital cutting, how many boys have their genitals cut, instances of severe adverse effects from boy's genital cutting;
- Remedies available for men whose rights have been violated. Are they gender-sensitive?

Suicide

The Commission should monitor whether the government is taking adequate measures to prevent male suicides. CCPR General Comment 36 says "States should take adequate measures, without violating their other Covenant obligations, to prevent suicides".[22]

7.8.9 Circumcision

The Committee on the Rights of the Child says:

> National human rights institutions have a key role to play in promoting and protecting human rights, including the right of individuals to be free from harmful practices, and enhancing public awareness of those rights.[6]

Nonmedical circumcision of male children is a harmful practice and a violation of human rights.[76]

Circumcision of boys is a controversial area of human rights, even so, States have an obligation to equally protect girls and boys from harmful practices.[8] The *Committee on the Elimination of Discrimination Against Women* and the *Committee on the Rights of the Child* jointly say that the right of boys to be free from harmful practices must be protected:

> Paragraph 4 – Moreover, the Committees recognize that **boys are also the victims of violence, harmful practices and bias and that their rights must be addressed for their protection** and to prevent gender-based violence and the perpetuation of bias and gender inequality later in their lives. Accordingly, reference is made herein to the obligations of States parties to the Convention on the Rights of the Child regarding harmful practices stemming from discrimination that affect boys' enjoyment of their rights.[6]
>
> Paragraph 32 – The Convention on the Rights of the Child... **obliges States parties to take all effective and appropriate**

[8] CCPR General Comment 28 – paragraph 28

> **measures with a view to abolishing traditional practices prejudicial to the health of children** (art. 24 (3)). In addition, it provides for **the right of the child to be protected from all forms of violence, including physical, sexual or psychological violence** (art. 19) and requires States parties to **ensure that no child is subjected to torture or other cruel, inhuman or degrading treatment or punishment** (art. 37 (a)). It applies the four general principles of the Convention to the issue of harmful practices, namely protection from discrimination (art. 2), ensuring the best interests of the child (art. 3 (1)),15 upholding the right to life, survival and development (art. 6), and the right of the child to be heard (art. 12).[6]

The Commission should support the Government in protecting boys from harmful practices. The Commission should monitor:

- Laws and policies that protect boys from non-medical circumcision;
- Differences in laws and policies for protecting boys and girls from genital cutting/mutilation or circumcision;
- Reasons (justifications) for the non-medical circumcision, e.g. religious or cultural traditions;
- How many boys are circumcised each year;
- Who is performing circumcisions;
- Cultural attitudes to circumcision.

The Commission should still monitor circumcision even if they think that a parent's right to practice their traditions is more important than the rights of a child, such as the right to bodily autonomy. Not all nonmedical circumcisions will be for religious or cultural reasons. These circumcisions are unambiguously violations of human rights, and the Commission's duty to protect human rights requires monitoring of these violations.

7.9 Identify vulnerable groups

During monitoring, the Commission should identify vulnerable groups of men and the situations where men are vulnerable as a whole. See **Prioritisation & Vulnerable Groups** on page 71 for more information.

7.10 Referral

The Commission should refer victims of human rights abuses to relevant services. The Commission should maintain a directory of men's services to refer men to.

The *Manual on Human Rights Monitoring* says:

Whenever appropriate, and with the informed consent of the individuals concerned, for the people they come into contact with HROs should facilitate access to structures and organizations that can provide psycho-social support, legal aid, shelter, physical protection, health care services, etc. This entails mapping existing referral pathways or networks, and establishing contacts with these organizations and services in advance so as to be in a position to advise on how to access them and to facilitate contact when needed. Coordination with other actors is thus essential to ensuring a wider availability of services, but also to ensuring that a referral respects confidentiality and protects the security of the individuals assisted.[57]

Chapter 8

Reporting

In this section 'reports' and 'reporting' include submissions to the United Nations or Government, advice and guidelines, media releases, social media posts, etc.

Reporting is a critical step to addressing men's rights issues. Uninformed policy makers make men more vulnerable to human rights abuses because they cannot address issues that they are unaware of. Public awareness is also important for addressing men's rights issues.

The *Manual on Human Rights Monitoring* says:

> Lack of access to disaggregated information and statistics **may render... sectors of the population even more vulnerable as their actual situation would not appear in reports and aggregated charts, and hence cannot inform policymaking processes**. Disaggregated information can also reveal the de facto discriminatory nature of some policies and laws that would otherwise appear neutral.[57]

Likewise, *Integrating a Gender Perspective into Human Rights Investigations* says that including gender-specific analysis in reports is essential for supporting efforts to address those issues:

> All efforts should be made to include key gender issues in the report itself, as well as in its summary. The analysis that reveals the differential impact on men and women of the violations suffered should be considered an integral part of the scope of the investigation and mandate and should be reflected among the findings and conclusions of the report. Moreover, considering that the report is likely to serve as the basis for follow-up actions, this **gender-specific analysis is instrumental in supporting efforts and tailored initiatives aimed at promoting victims' access to justice and effective remedies**.[43]

The Commission's reports, submissions, and advice should clearly identify and highlight issues for men and boys. Reports should include issues that affect men *because they are men*, such as direct discrimination, and issues that predominately affect men, such as the treatment of prisoners.

In 2015, men's advocates asked the Commission to report men's issues to the UN. Since 2015, the Commission's reports have had significant shortcomings for men and boys. For example, the Commission's 2016 submission for the sixth CCPR review[15] raises the issue of "discrimination that sees more Māori and more disabled people in our prisons", but fails to include discrimination against men which also contributes to the over-representation of men in prison.[34]

8.1 Accuracy

The Commission's reports should be accurate. It is not enough to report facts; accuracy requires providing context to make facts understandable. Facts are often used to support narratives which paint an inaccurate picture of the human rights situation.

National Human Rights Institutions – History, Principles, Roles and Responsibilities says:

> [A]n institution is obliged to be rigorous in its own fact-gathering and analysis when forming a recommendation, **opinion or report.** Ultimately, its credibility will be assessed by the quality and pertinence of its recommendations and opinions. If these are too often ill-founded or flawed, the institution will find that all sides easily dismiss them and its subsequent recommendations will not be taken seriously.[54]

Examples of inaccuracy: In *Human Rights in New Zealand; Ngā Tika Tangata O Aotearoa*[10], the Commission states:

> Relative to other OECD countries, the New Zealand homicide rate is "considerably higher" for women (1.2 per 100,000) than men (0.7 per 100,000).

These figures and the quoted text are incorrect. The Commission used OECD figures in place of New Zealand figures and switched the male and female statistics. The quoted text ("considerably higher") refers to the New Zealand female homicide rate compared to the OECD median female homicide rate, not a comparison of the rates for males and females in New Zealand.

The source cited[53], states:

> OECD homicide death rates are standardised to the 1980 OECD population and differ from the rates shown in this indicator. The

> most recent data is for the years 2003–2007. The median homicide death rate for 28 OECD countries over this five-year period was 1.2 per 100,000 for males and 0.7 per 100,000 for females. New Zealand's homicide death rates in 2005 were higher than the OECD medians for males (1.9 per 100,000) and considerably higher for females (1.6 per 100,000)

In *Guidance on social cohesion for workplaces* the Commission states:

> Examples of special measures might be... designated spaces on university campuses for underrepresented groups in tertiary education such as **women's**, Pacific and Māori spaces and prayer rooms.

However, women are not underrepresented at university. *Radio New Zealand* reports "The percentage of domestic university students who are men has reached an all-time low of 39 percent, and it is worrying universities."[30]

8.1.1 Sex-disaggregated data

Disaggregated data is essential for accurate human rights monitoring and reporting. "This is key to determining the gender specificities of human rights violations as well as to giving an accurate account of the particular experience of women, girls, men and boys and to identifying potentially discriminatory practices or targeting".[43]

The Commission should *always* report sex-disaggregated data unless it is not available. *Integrating a Gender Perspective into Human Rights Investigations* gives examples of reporting disaggregated data:

> Always use available disaggregated data on age and sex (e.g. instead of saying "five journalists were arbitrarily detained", use "three female and two male journalists were arbitrarily detained"; instead of saying "twenty-four persons, including two women and two children", use "twenty men, two women, one boy and one girl").[43]

If disaggregated data is not available, the Commission should explain why it is not available. "The report should address any possible gaps in information and/or challenges to obtaining information due to gender dynamics and gender-based discrimination, in order not to present a distorted image of the reality".[43]

Reports exclusively covering women's (or men's) rights should still use disaggregated data to help readers understand the broader context and to ensure that the report does not reinforce gender stereotypes.

Reports should not state that groups are disproportionally affected without statistics to show the difference. Without statistics, the readers are left to fill in the gaps, which risks reinforcing stereotypes. Also, report writers should watch

when they use terms like 'disproportionally' and ensure that it is consistent for both women and men.

Examples of poor practice

Organisations may selectively use disaggregated data in communications. For example, WHO reports disaggregated data when women are disproportionately affected by depression but does not report disaggregated data when men are disproportionately affected by suicide. Elsewhere, the WHO's data shows the age-standardised global suicide rate in 2019 was 12.6 per 100,000 for males and 5.4 per 100,000 for females.[69]

> An estimated 3.8% of the population experience depression, including 5% of adults **(4% among men and 6% among women)**, and 5.7% of adults older than 60 years... **More than 700 000 people die due to suicide every year**. Suicide is the fourth leading cause of death in 15-29-year-olds.[68]

8.2 Gender-sensitive language

The language used in reports can affect how the report is received and whether policy makers will take action. The Commission should use gender-sensitive language in reports to ensure that men's rights issues are understood and to promote action from policy makers. This includes:

- Using language that clearly identifies gender issues for men and boys;
- Focusing on men as rights-holders, rather than perpetrators or duty-bearers;
- Avoiding language that reinforces stereotypes.

Examples of poor practice: Callister(2009) gives an example on how language can minimise the human rights issues faced by men:

> Differences between male and female outcomes can either be highlighted or downplayed through the use of language. An example comes from a mid 2008 statement on Human Rights issues for men and boys issued by the Human Rights Commission. They note (emphasis added):
>
> > At tertiary level, women are slightly more likely than men to participate in tertiary education (14.6 percent compared with 12.8 percent of men in 2006). Men and women had the same rate of participation in sub-degree courses (10 percent), but women are slightly more likely than men to be enrolled in degree and post-graduate courses (six percent and four percent, respectively).

> In contrast, in a 2007 press release in relation to the differences in earnings between women and men, the HRC noted (emphasis added) '[t]he wide pay gap between the sexes means that pay equity must be a priority for women's progress.'(HRC, 2008b). But when the actual numbers behind both these statements are considered, one finds that a 14 percent difference in pay, in favour of men, is seen as a 'wide' gap by the HRC. However, the similar 14 percent gap in tertiary participation, in favour of women is portrayed by the HRC as a 'slight' gap.[4]

8.2.1 Clearly identify men's issues

The Commission's reports should clearly identify issues related to men's rights. Reports should use a consistent standard gender-related issues in reports. Reports should not minimise gender when men are uniquely or predominately affected, while highlighting gender when women are uniquely or predominately affected. *Integrating a Gender Perspective into Human Rights Investigations* says:

> It is particularly important to avoid referring specifically to women when speaking only about certain violations (ex. sexual violence) while using gender neutral nouns when reporting on others (ex. killings, torture, etc.).

Reports should avoid including men's human rights issues under the heading of women's rights. For example, in *Human Rights in New Zealand; Ngā Tika Tangata O Aotearoa*, the issue of service gaps for male victims of sexual violence is only raised in the chapter on women's rights.

8.2.2 Focus on men as rights-holders

The Commission's reports should focus on men as *rights-holders*. Focussing on men as rights-holders means:

- Identifying duty-bearer's obligations to men;
- Identifying duty-bearer's shortcomings in their obligations to men;
- Supporting men's right to data about them by including data about men and boys;
- Including recommendations to address the human rights issues faced by men and boys;
- Avoiding stereotypes (see below);
- Using language that empowers men.

The Commission should avoid language that minimises the issues faced by men. See Table 8.1 on page 70

8.2.3 Avoid Stereotypes

The Commission should avoid using or reinforcing gender stereotypes in reports. Stereotypes can be reinforced by the language used and also by the content or focus of the report. *Integrating a Gender Perspective into Human Rights Investigations* gives examples of stereotypes:

> Stereotyping attributes are also common, for example reports should avoid portraying only men as leaders and women as followers, or men as active and women as passive and "vulnerable". Women and girls are not intrinsically vulnerable or victims by nature.[43]

The content or structure of a report can reinforce stereotypes. A report that has a section on women's rights, but no section on men's rights reinforces several stereotypes. For example:

- It implies there is a male standard that women's issues are judged against;
- It risks assigning women to the role of passive, vulnerable victim;
- It implies that men are not vulnerable to human rights abuses, or just have to tough it out;
- Undermines universality of human rights by implying women's rights are more important than men's.

Including sections for both women and men:

- Helps to reduce gender-stereotypes;
- Helps inform the public, improving understanding between men and women;
- Demonstrates universality of human rights;
- Helps reduce barriers for men advocating for their rights.

Example of poor practice: The Commission's submission on the National Action Plan to Address Family and Sexual Violence reinforces the stereotypes that men are violent and women are victims[13]:

> In this time there were 125 deaths due to IPV – 76 percent of offenders were men and 70 percent of victims were women.

Following best practice to use sex-disaggregated data, it could be stated as:

> In this time there were 125 deaths due to IPV - victims were 70 percent female, 30 percent male. Perpetrators were 76 percent male, 24 percent female.

8.3 Reports should benefit men & men's advocates

The Commission's reports should benefit rights-holders, including men and boys. Reports should provide information that supports the ability of men advocates to advocate for change. For example, by providing a section on men's rights issues and / or ensuring that sex-disaggregated data and other relevant information for men's advocates is included.

The Commission should be collecting information about men's rights (see **Monitoring & Investigations**, on page 37, for more information). Men and men's advocates have a right to that information. Their "access to data and reports informing them of existing inequalities among population groups is essential to the realization of the right to information, and the monitoring and realization of human rights more generally".[56]

8.4 Recommendations and advice

The Commission should take opportunities to recommend changes and give advice on how to improve the human rights situation for men and boys. Recommended changes could include[1]:

- Changes to laws, policies, and practices to prevent systemic and structural discrimination of men and boys, for example:
  - The repeal/revision of discriminatory laws;
  - Training of judiciary, police, etc. to address bias against men;
  - Creating a government department to provide provide expertise and advice on men's issues Eg a Ministry for Men;
- The adoption of temporary special measures to addressing existing discrimination and disadvantage face by men and boys;
- Measures to ensure male victims of violence have quality services available to them;
- Accountability measures to ensure discrimination against men and boys is addressed and there is suitable mechanism for redress;
- Mechanisms to monitor men's human rights;
- Awareness raising campaigns to education the public on men's human rights issues.

Example of poor practice: The Commission's submission on the *National Action Plan to Address Family and Sexual Violence*[13] has significant oversights on men who experience violence. The submission claims to be 'gender-sensitive' and 'victim-centred', but ignores the circumstances and needs of

[1] List adapted from *Integrating a Gender Perspective into Human Rights Investigations.*

male victims. There are no recommendations to address the specific needs of male victims and some recommendations explicitly exclude male victims. For example, the Commission recommends:

> Sanctuary for everyone in women's refuges, including migrants, refugees, and disabled people.

Women's refuges exclude men and can not be a sanctuary for 'everyone'.

8.5 National Plan Of Action

The Human Rights Act 1993 requires the Commission to develop a National Plan of Action.[31] National Plans of Action should include strategies to ensure men have equal enjoyment of their rights. "States parties must integrate into national plans of action for human rights appropriate strategies to ensure the equal right of men and women to the enjoyment of economic, social and cultural rights."[65] *General Comment No. 16: The Equal Right of Men and Women to the Enjoyment of All Economic, Social and Cultural Rights*[65] requires the National Plan of Action to:

- Recognise the equal enjoyment of rights is mandatory, immediate and non-derogable obligation;
- Have strategies to:
  - Stop existing discrimination;
  - Prevent discrimination and stereotypes;
  - Establish agencies to protect from discrimination;
  - Ensure women and men enjoy their rights *in practice*;

A National Plan of Action requires a comprehensive baseline study. "A comprehensive and accurate baseline study is a key element in any systematic approach to the development of a national action plan. For a country to move forward towards better observance of human rights, it is important to know where it stands at present."[58] The Commission should ensure that there is a baseline for the rights of men and boys.

Human Rights in New Zealand; Ngā Tika Tangata O Aotearoa[10] is the Commission's baseline report for human rights in New Zealand. Although some men's rights issues occur throughout the report, important men's rights issues, such as discrimination against men in the justice system, are ignored.

The Commission should ensure that the baseline report accurately reflects the issues faced by men and boys. This includes areas where men face discrimination and/or areas where men are vulnerable to human rights violations.

Handbook on National Human Rights Plans of Action makes recommendations for the baseline study. It should:

- Examine the legal framework, institutions for the protection of men's rights and the state of human rights education and awareness about men's rights;
- Provide disaggregated data, including for race, gender and other criteria, so that the incidence of discrimination is apparent;
- Identify where men, in general, are vulnerable to human rights abuses, and any particular groups of men that are vulnerable to human rights abuses.

See **Prioritisation & Vulnerable Groups**, on page 71 for more information.

The Commission should ensure that plans to address gender inequality and/or gender-based violence include the inequality and violence faced by men and boys.

8.6 Checklist for reports

The *Manual on Human Rights Monitoring* has a checklist to ensure that gender, and therefore men and boys, are included in reports:

- Does the report address gender as a specific subject?
- Does the report address gender in a specific section and/or is it mainstreamed throughout?
- Does the report contain sex-disaggregated data or information? When is gender identification used (i.e., mentioning women, men, girls, boys and others)?
- Do the sources of information of the report include women's groups or women human rights defenders?
- Does the report use gender-sensitive language?
- Does the report represent the point of view of women, men, girls, boys and others?
- Are the pictures contained in the report representative of the reality of women, men, girls, boys and others? Do they convey stereotypical images of some of these groups?
- Does the report analyse how human rights violations affect women, men, girls, boys and others differently?
- If the report deals with specific cases, do these concern women, men, girls, boys and others?
- If the report mentions human rights or development indicators, does it include indicators to measure gender equality?
- Does the report explicitly indicate the action(s) taken or the position and policies adopted by... the Government to promote gender equality or women's human rights?

Avoid	Instead	Reason
Men also *appear* to have difficulty in accessing services.	Men report having difficulty accessing services.	Removed minimising language.
Men are three times as likely to commit suicide *but* half as likely to intentionally harm themselves.	Men are three times as likely to commit suicide *and* half as likely to intentionally harm themselves.	Replaced negating language.
Men's Health: As in most modern societies, women in New Zealand generally live longer than men.	Men's Health: As in most societies, men have a shorter life expectancy than women.	Made men the subject of the sentence.
Some related to a *perceived* emphasis towards women's health at the expense of men's.	Some complainants were concerned about an emphasis on women's health at the expense of men's.	Using 'perceived' implies the complainants are mistaken.
A study of Britain's NHS found that men could find it difficult to engage with health services.	A study of Britain's NHS found that health services were difficult for men to engage with.	Focus moved to duty-bearer's responsibilities, rather than rights-holders actions.
One father said that two weeks' paid parental leave on the birth of a child would be ideal... This would enable mothers to return to work and fathers to be primary caregivers early in a child's life.	One father said that two weeks' paid parental leave on the birth of a child would be ideal... This would enable fathers to be primary caregivers early in a child's life and mothers to return to work.	Focusing on fathers, in a section about fathers.
Men's Health: Men tend to have higher mortality rates... Women, on the other hand, tend to have higher morbidity rates, especially as they age.	Men's Health: Men tend to have higher mortality rates... Men tend to have lower morbidity rates, especially as they age.	Focusing on men in the men's health section.

Table 8.1: Examples of minimising language: Quotes adapted from the Commission's 2010 report: *Human Rights in New Zealand; Ngā Tika Tangata O Aotearoa*

Chapter 9

Prioritisation & Vulnerable Groups

The Commission should prioritise individuals and groups that are vulnerable to human rights violations. In a human rights context, vulnerability means individuals or groups:

- "whose rights have been violated and those whose rights are at particular risk of violation."[48]
- Who are less able to recover from human rights violations;
- Who are less able to respond to human rights violations, for example, being unable to take their own legal action.

A Manual on National Human Rights Institutions says:

> **An NHRI should be aware of the particular groups within its society that are especially vulnerable to human rights violations**, either through their experiences of human rights violations or their particular risks of human rights violation... It should develop specific mechanisms through which the needs and concerns of those groups will be made visible within the NHRI itself.

The Commission should objectively consider where men are vulnerable to human rights violations.

The *Manual on Human Rights Monitoring* suggests asking three questions:

- Do threats affect women and men differently? If so, how?
- Are there threats specifically targeting men or women? If so, is it because of their gender?
- Are men and women vulnerable in a different way to threat(s)? If so, how?

9.1 How men and boys are vulnerable to human rights violations

The Commission should consider how men and boys are vulnerable to human rights violations.

The *Manual on Human Rights Monitoring* says to avoid making assumptions about vulnerability, such as "Labelling all women as a 'group' that is inherently 'vulnerable' or 'marginalized' in its entirety and in all circumstances."[57] Specific situations can mean that women or men are more vulnerable than the other. Neither women nor men are inherently more vulnerable to rights violations.

9.1.1 How men are vulnerable

Men and boys are vulnerable to human rights abuses in a number of ways:

Inadequate legal protection for men and boys: Men and boys are more vulnerable to human rights violations if the law does not provide equal protection for them. For example, protection from genital cutting.

Discrimination written into law or policy: Men and boys are vulnerable to rights violations when the law or policy discriminates against them.

Fewer mechanisms to identify and address men's rights Men and boys are more vulnerable to human rights violations if there are fewer mechanisms to identify and address their human rights issues, or if the mechanisms to protect their rights are not protecting their rights *in practice*.

For example, women have many mechanisms that men lack:

- Minister and Ministry for Women;
- Women's Health Strategy
- Women's Equality Strategy
- Convention on the Elimination of All Forms of Discrimination against Women
- Jurisprudence and guidance explicitly recognising women's rights. See also Lack of jurisprudence and guidance on page 27
- UN Women;

Poorer visibility of men's rights issues: Men and boys are more vulnerable to human rights violations if men's rights issues are not well known or understood. Poor knowledge or understanding of men's rights issues among policy makers increases the risk that men's rights will be violated or left unaddressed.

See Chapter 8, Reporting on page 61 for more about making men's rights issues visible.

Attitudes and stereotypes: Men and boys are more vulnerable to human rights violations if people have attitudes or believe stereotypes that devalue men's rights. The greatest risk comes from the attitudes of policymakers, police, judges, health care workers, teachers, or others directly responsible for ensuring that rights are respected.

For example, if people believe that men's disadvantages are normal or natural or that men cannot be discriminated against, they are unlikely to recognise violations against men.

See Attitudes that devalue men's rights on page 25 for more information.

Cognitive bias: People's biases can increase men's vulnerability to human rights violations.

Researchers have found that people tend to see men's suffering as less important than women's suffering. For example, Reynolds[72] found the following:

- People tend to be more concerned about female suffering;
- People think male suffering is more deserved or fair;
- People are more motivated to punish men (see also, Jeffries[34])
- These biases extend to group-level harm.

People are also less willing to address discrimination against men. Sinclair[74] finds that while affirmative action for women is seen negatively, affirmative action for men is seen even more negatively. People also feel a stronger sense of resentment when men are favoured. Similarly, Block[2] found that gender imbalances are perceived differently for male vs. female dominant careers. People are more concerned about under-representation of women in male-dominated careers than the other way around.

Prisoners: Men are more vulnerable to the human rights violations that occur in the prison system because they make up the vast majority of prisoners.

See **Removing Barriers** on page 21 for more information about potential vulnerabilities.

9.2 Following human rights principles

The Commission should follow human rights principles when prioritising various groups or human rights issues.

Open & Transparent: The Commission's prioritisation process must be open to scrutiny by rights holders. Rights-holders must be able to see and understand how decisions about priorities are made. This is especially important for rights-holders who have not been prioritised.

The Commission should also consider the effect of prioritisation on people who are not prioritised. Furthermore, to be open and transparent, the Commission should clearly define what they mean by 'vulnerable' or 'marginalised' groups. Using undefined terms means that:

- Rights-holders are uninformed about how the Commission has made its decisions;
- Commission staff may not properly understand each other leading to confusion;
- The Commission's communication may not be understood correctly by government, and the public.

Non-discrimination: Prioritisation must be based on objective and reasonable grounds and not discriminate arbitrarily.

Participatory: The Commission should engage with right-holders when deciding priorities. The Commission should consider the effect of prioritisation on the people who are not prioritised and engage with them.

Accountable: The Commission should be accountable to rights-holders. If the process of developing its priorities or the decisions about priorities negatively affect some rights-holders, those rights holders should have a means of redress.

Chapter 10

Accountability

The Commission has "two levels of accountability, one to the State and one to the public".[54] Part of the Commission's accountability to the public is the responsibility to men and boys. The Commission's board must "put in place principles and policies that... ensure the Commission is transparent, effective and *accountable to stakeholders*, including the Minister and the public.[19]

"Accountability is about ensuring laws, policies, strategies, plans, and promises are respected. It does not need to be about blame and punishment. Accountability can be about identifying what works so it can be repeated, and what doesn't work so it can be adjusted and remedial action taken. In the human rights field, this is called 'constructive accountability'."[17]

The *Governance and Responsibility Manual* describes the Commissioners' requirement to the letter and spirit of the law:

> Commissioners should comply with the spirit as well as the letter of the law, mindful that in addition to purely legal requirements, the proper discharge of these duties requires high ethical and moral standards of behavior.[19]

A Manual on National Human Rights Institutions explains the moral and ethical obligations of the Commission to men and boys:

> **NHRIs also have moral accountability obligations to the community**, especially to those who are victims of or at risk of human rights violations. The mandate to promote and protect human rights is a mandate of leadership on behalf of actual and potential victims of violations, as well as one of service to actual and potential victims. **NHRIs owe the community generally, and victims particularly, reports on their work, including their effectiveness and their failings. This is not a legal obligation but a moral and ethical one**. It certainly requires NHRIs to release publicly and promote their reports to parliaments

> and to make them generally available. However, it also requires a variety of less formal reporting mechanisms, including briefings, consultation meetings, regular statements, news reports and so on. **Accountability to the community is not an annual activity but a continuing process of reporting and seeking feedback, of consulting and listening**.

The Commission identifies three elements of accountability[17]:

- monitoring i.e. the collection of information and data;
- review, including *independent* review, in relation to agreed standards and promises made;
- remedial action i.e. putting things right, so far as possible.

10.1 Monitoring effectiveness

The Commission should be effective in their work to protect and promote the human rights of men and boys.

The Commission should "actively evaluate the effectiveness of its activities" and "should examine the quality of the NHRI's programmes and the extent to which existing programmes sufficiently address the human rights issues"[73] for men and boys.

National Human Rights Institutions Best Practice says:

> **NHRIs exist to serve the public, and accordingly, the public should have a mechanism for assessing how effectively an NHRI is performing its mandate**. Public assessment requires that NHRIs evaluate their own programmes regularly and include the results of such evaluations in their annual reports. The evaluations undertaken by NHRIs should analyse all of their functions, including the resolution of complaints, the prevention of human rights abuses, as well as the promotional and educational aspects of their work.

10.1.1 Complaints

The Commission should have a robust complaint procedure to handle complaints about the Commission's actions or policies. Complaints are opportunities for the Commission to improve its work. The Commission should be responsive to feedback and complaints from men and men's advocates. The Commission should provide redress or remedy when they have failed in their obligations to men and boys.

The *New Zealand Ombudsman* outlines an effective complaint process[61]:

An effective complaints process should aim to achieve the following:

- a user friendly system;
- complainants are heard and understood;
- complainants are respected;
- explanations and apologies are provided where appropriate;
- action is taken as soon as possible;
- clear delegations and procedures for staff to deal with complaints and provide remedies
- a recording system to capture complaints data;
- the use of complaint data to identify problems and trends; and
- an outcome of improved service delivery in identified areas.

10.2 Review

Independent review is a critical part of accountability. This reports serve as an independent review of the Commission's responsibilities and obligations to men and boys.

The Commission should have regular independent reviews.

10.3 Remedy

Remedy means making changes to make things right. Chapter 1.2 gives selected recommendations for the Commission to correct shortcomings and improve its work with men and boys. These do not replace the guidance provided in the body of this report.

The Commission should collaborate with men and men's advocates when making changes. See Chapter 5, Collaboration and cooperation on page 29.

Acronyms

APF Asia Pacific Forum. 13

BORA Bill of Rights Act. 44

CCPR International Covenant on Civil and Political Rights. 37, 45, 46, 57, 62

CEDAW Convention on the Elimination of All Forms of Discrimination against Women. 13, 17, 72

GANHRI Global Alliance of National Human Rights Institutions. 30

GBV Gender-based Violence. 52

HRO Human Rights Officer. 39, 59

ICESCR International Covenant on Economic, Cultural and Social Rights. 37, 45, 46, 54

NHRI National Human Rights Institution. 7, 8, 13, 15, 17–19, 22, 23, 25, 30, 31, 33–36, 56, 71, 75, 76

UDHR Universal Declaration of Human Rights. 12, 37

UPR Universal Periodic Review. 30

WHO World Health Organisation. 64

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